

25NWLC51823 25NWLC51823

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Case Number: 25NWLC51823 Hearing Date: August 5, 2026 Dept: Y

25NWLC51823 NAVY FEDERAL CREDIT UNIO vs BETHANY L WARE PURKETT

The Court has read and considered Defendant Bethany Ware's ("Defendant") Motion to Set Aside and Vacate Default and Default Judgment ("Motion") filed on June 15, 2026. No opposition has been filed by Plaintiff Navy Federal Credit Union ("Plaintiff"). The Court has also reviewed all relevant court records.

The Court notes that Default was entered by the Clerk on November 25, 2025. Default Judgment was entered by the Clerk on December 16, 2025. A Writ of Execution was issued on March 24, 2026.

The Court notes that the Court's docket indicates that Proof of Service of Summons by a registered process server by personal service was filed with the Court on December 4, 2025 creating a presumption of service under Evidence Code section 647.

The Court also notes that Defendant has argued that no proof of service was filed with the Court before the entry of default on November 25, 2025. The Court reviewed the electronic filings by Plaintiff and a duplicate proof of service was received by the Court on or about November 25, 2025 – the same day as the Default was entered by the Clerk – but was later replaced by the duplicate filing of the Proof of Service on December 4, 2025. The Court notes that the later duplicate filing of the Proof of Service should have been rejected and acknowledges that this does cause some confusion with the procedural history of this case as reflected on the Court's docket.

Defendant's declaration, which was signed under penalty of

perjury, states that she was not personally served with the Summons and Complaint. She has provided evidence that she was never personally served with the documents and did not avoid service. She found the Summons and Complaint in an unsealed envelope on her doorstep. She also states, under penalty of perjury, that she does not match the physical description of the person allegedly served by the process server. She also confirms she did not become aware of the process server's statements about service until May 15, 2026 when she was notified of the garnishment order.

Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Code of Civil Procedure section 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Pursuant to Code of Civil Procedure section 473.5 and in the interests of justice, the Court GRANTS Defendant's Motion and vacates and sets aside the entry of default and Default Judgment. The Court also vacates and sets aside the Writ of Execution that was issued by the Court on March 24, 2026.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.